



Registration of a Charge

Company Name: **ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED**

Company Number: **07160664**



Received for filing in Electronic Format on the: **13/12/2024**

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Details of Charge

Date of creation: **10/12/2024**

Charge code: **0716 0664 0008**

Persons entitled: **GLAS TRUST CORPORATION LIMITED (AS SECURITY AGENT)**

Brief description:

Contains fixed charge(s).

Contains negative pledge.

Authentication of Form

This form was authorised by: **a person with an interest in the registration of the charge.**

Authentication of Instrument

Certification statement: **I CERTIFY THAT SAVE FOR MATERIAL REDACTED PURSUANT TO S.859G OF THE COMPANIES ACT 2006 THE ELECTRONIC COPY INSTRUMENT DELIVERED AS PART OF THIS APPLICATION FOR REGISTRATION IS A CORRECT COPY OF THE ORIGINAL INSTRUMENT.**

Certified by: **MILBANK LLP**



CERTIFICATE OF THE REGISTRATION OF A CHARGE

Company number: 7160664

Charge code: 0716 0664 0008

The Registrar of Companies for England and Wales hereby certifies that a charge dated 10th December 2024 and created by ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED was delivered pursuant to Chapter A1 Part 25 of the Companies Act 2006 on 13th December 2024 .

Given at Companies House, Cardiff on 19th December 2024

The above information was communicated by electronic means and authenticated by the Registrar of Companies under section 1115 of the Companies Act 2006



Companies House



**THE OFFICIAL SEAL OF THE
REGISTRAR OF COMPANIES**

EXECUTION VERSION

LIMITED RECOURSE SECURITY AGREEMENT

DATED 10 DECEMBER 2024

ALPHA MARKETS CONSULTING GROUP LIMITED

in favour of
GLAS TRUST CORPORATION LIMITED
as Security Agent

A&O SHEARMAN

Allen Overy Shearman Sterling LLP

0103821-0000115 UKO3: 2008225558.4

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THIS SECURITY AGREEMENT is made by way of deed on 10 December 2024

BY:

- (1) ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED (the **Original Chargor**);
in favour of
- (2) GLAS TRUST CORPORATION LIMITED as security trustee for each of the Secured Parties (the **Security Agent**).

IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Security Agreement:

Acceleration Event has the meaning given to that term in the Intercreditor Agreement.

Charged Assets means all of the assets and undertaking of the Chargor which from time to time are the subject of any Security created or expressed to be created by it in favour of the Security Agent by or pursuant to this Security Agreement.

Chargor means the Original Chargor.

Collateral Rights means all rights, powers and remedies of the Security Agent provided by or pursuant to this Security Agreement or by law.

Company means Alpha Financial Markets Consulting UK Limited.

Event of Default means any event or circumstance specified as a '**Major Event of Default**' under the Senior Facilities Agreement.

Final Discharge Date means the date on which the Secured Obligations have been irrevocably and unconditionally discharged in full (or until this Security created under this Security Agreement is otherwise released in accordance with the Finance Documents).

Finance Document has the meaning given to such term in the Intercreditor Agreement.

Intercreditor Agreement means the intercreditor agreement dated 16 August 2024 and made between, among others, Actium Midco 2 (UK) Limited as Parent, Actium Midco 3 (UK) Limited as Company, GLAS USA LLC as Agent and GLAS Trust Corporation Limited as Security Agent.

Parent means Actium Midco 2 (UK) Limited.

Receiver means a receiver, receiver and manager or, where permitted by law, an administrative receiver and that term will include any appointee made under a joint or several appointment.

Related Rights means, in relation to any asset:

- (a) the proceeds of sale or rental of any part of that asset;
- (b) all rights under any licence, agreement for sale or agreement for lease in respect of that asset;

- (c) all rights, powers, benefits, claims, consents, causes of action, contracts, warranties, remedies, security, guarantees, indemnities or covenants for title in respect of or derived from that asset; and
- (d) any monies and proceeds paid or payable in respect of that asset.

Secured Obligations means, with respect to the Chargor, its Secured Obligations (such term having the meaning given to that term in the Intercreditor Agreement).

Secured Parties has the meaning given to such term in the Intercreditor Agreement.

Security Period means the period beginning on the date of this Security Agreement and ending on the Final Discharge Date.

Senior Facilities Agreement means the senior facilities agreement dated 16 August 2024 between, among others, Actium Midco 2 (UK) Limited as Parent, Actium Midco 3 (UK) Limited as the Company, Actium Bidco (UK) Limited as UK Bidco, Actium Bidco (US) Limited as US Bidco, GLAS USA LLC as Agent and GLAS Trust Corporation Limited as Security Agent.

Shares means any stocks, shares and other securities listed in Schedule 1 (Shares) and all of the Chargor's present and future shares in the share capital of any Obligor which is a direct or indirect wholly-owned subsidiary of the Parent and incorporated in England and Wales in each case, from time to time held by, to the order, or on behalf, of that Chargor.

1.2 Incorporation by reference

- (a) Unless defined in this Security Agreement or the context otherwise requires, terms defined in any relevant Debt Document or the Intercreditor Agreement (as applicable) have the same meaning in this Security Agreement or any notice given under or in connection with this Security Agreement.
- (b) This Security Agreement is subject to the Intercreditor Agreement. In the event of any inconsistency between this Security Agreement and any relevant Debt Document or the Intercreditor Agreement, then (to the fullest extent permitted by law) the provisions of any relevant Debt Document or (as applicable) the Intercreditor Agreement shall prevail (and that, **if requested to do so by (and at the cost of) the Obligors' Agent, the Security Agent will enter** into such amendments, waivers or consents as are necessary to remove such conflict).

1.3 Construction

In this Security Agreement:

- (a) the rules of construction contained in clause 1.2 (Construction) of the Intercreditor Agreement shall apply to the construction of this Security Agreement, or in any notice given under or in connection with this Security Agreement;
- (b) any reference to the **Security Agent, the Secured Parties, the Chargor**, or any other person where relevant, shall be construed so as to include its or their (and any subsequent) successors in title, permitted assigns and permitted transferees in accordance with their respective interests and, in the case of the Security Agent, any person for the time being appointed as Security Agent in accordance with the Intercreditor Agreement; and
- (c) references in this Security Agreement to any Clause or Schedule shall be to a Clause or Schedule contained in this Security Agreement unless specified otherwise.

1.4 Incorporation of provisions from the Intercreditor Agreement

Clause 1.2 (Construction), clause 1.3 (Third Party Rights) and clause 25 (Notices) of the Intercreditor Agreement are deemed to form part of this Security Agreement as if expressly incorporated into it and as if all references in those clauses to the Intercreditor Agreement were references to this Security Agreement.

1.5 Present and future assets

- (a) A reference in this Security Agreement to any Charged Asset or other asset includes, unless the contrary intention appears, present and future Charged Assets and other assets.
- (b) The absence of or incomplete details of any Charged Assets in any Schedule shall not affect the validity or enforceability of any Security under this Security Agreement.

1.6 Separate Security

Clause 4.1 (Fixed charge over Shares) shall be construed as creating a separate and distinct fixed charge over each relevant asset within any particular class of assets defined in this Security Agreement and the failure to create an effective fixed charge (whether arising out of this Security Agreement or any act or omission by any party) over any one asset shall not affect the nature or validity of the fixed charge or assignment imposed on any other asset whether within that same class of assets or not.

1.7 Security Agent assumes no obligation

The Security Agent shall not be under any obligation in relation to the Charged Assets as a consequence of this Security Agreement and the Chargor shall at all times remain liable to perform all obligations in respect of the Charged Assets.

1.8 Permitted Transactions and Permitted Security

- (a) Notwithstanding anything to the contrary in this Security Agreement, the terms of this Security Agreement shall not operate so as to prohibit or restrict any transactions or other matters which are permitted under any Debt Documents. The Security Agent shall enter into such documentation and/or take such other necessary action as is required by the Chargor (acting reasonably) in order to facilitate the entry into any such transactions or other matters, including by way of executing any confirmations, consent to dealing, release or other similar or equivalent document provided that any costs and expenses incurred by the Security Agent entering into such documentation and/or taking such other action at the request of the Chargor pursuant to this Clause 1.8 shall be for the account of the Chargor.
- (b) References in this Security Agreement to **'first ranking' security** are subject to any Security permitted by the Debt Documents and shall be construed accordingly.

2. COVENANT TO PAY

2.1 Covenant to pay

Subject to any limits on liability as specified in the Debt Documents, the Chargor covenants with the Security Agent (for the benefit of itself and the other Secured Parties) that it shall, on demand of the Security Agent pay, discharge and satisfy its Secured Obligations (to the extent applicable to it) in accordance with the terms of the Debt Documents.

2.2 Limited Recourse

- (a) Notwithstanding any other provision of this Security Agreement or any other Finance Document:
 - (i) the recourse of the Secured Parties to the Chargor under this Security Agreement shall at all times be limited to the rights of enforcement and recovery against the Charged Assets; and
 - (ii) **the Chargor's liabilities and obligations under this Security Agreement are limited to, and may only be discharged from, the Charged Assets (including, for the avoidance of doubt the proceeds of sale or other realisation thereof) following enforcement of the security granted pursuant to this Security Agreement in accordance with Clause 8 (Enforcement of Security) (the Third Party Security Recovery Proceeds) (and the liabilities of the Chargor under the Debt Documents shall be fully discharged and extinguished upon such realisation).**
- (b) Subject to the foregoing, the Secured Parties shall not:
 - (i) have any recourse to the Chargor generally or to any other assets of the Chargor other than the Charged Assets;
 - (ii) seek to recover from the Chargor any shortfall between the amount of the Third Party Security Recovery Proceeds and the Secured Obligations including by proving or otherwise claiming **in the Chargor's insolvency proceedings** or
 - (iii) sue or commence, join or bring any action or proceeding against the Chargor or apply to have the Chargor wound up or made subject to insolvency proceedings solely as a result of any shortfall referred to in paragraph (ii) above.

2.3 Default interest

If the Chargor fails to pay any amount payable by it under this Security Agreement on its due date, interest shall accrue on the overdue amount (both before and after judgment) from the date of demand until the date of payment calculated on a daily basis at the rate determined in accordance with and on the terms set out in, clause 22.4 (Interest on Demand) of the Intercreditor Agreement.

3. COMMON PROVISIONS

3.1 Common provisions as to all Security

All the Security created by or pursuant to this Security Agreement by the Chargor is:

- (a) created with full title guarantee provided that the covenant set out in section 3 of the Law of Property (Miscellaneous Provisions) Act 1994 shall not extend to the Security;
- (b) created in favour of the Security Agent as trustee for the Secured Parties and the Security Agent shall hold the benefit of this Security Agreement and the Security created by or pursuant to it on trust for the Secured Parties; and
- (c) continuing security for the payment and discharge of all Secured Obligations.

4. FIXED SECURITY

4.1 Fixed charge over Shares

Subject to Clause 2.2 (Limited Recourse) and Clause 5.6 (Property Restricting Security), the Chargor charges, by way of first fixed charge, all of its rights, title and interest from time to time in and to the

Shares and all dividends, distributions, interest and other monies payable in respect of those Shares together with all shares or other property derived from the Shares and all other allotments, accretions, rights, benefits and advantages of all kinds accruing, offered or otherwise from the Shares and all Related Rights (whether derived by way of redemption, bonus, preference, options, substitution, conversion, compensation or otherwise).

5. SECURITY AGREEMENT PROVISIONS AS TO SECURITY AND PERFECTION

5.1 Negative pledge and restrictions on dealings

Except as permitted under each of the Debt Documents, the Chargor shall not at any time during the Security Period create or permit to subsist any Security over all or any part of the Charged Assets or dispose of or otherwise deal with any part of the Charged Assets.

5.2 No implied covenants for title

The covenants set out in sections 3(1), 3(2) and 6(2) of the Law of Property (Miscellaneous Provisions) Act 1994 will not extend to Clause 4 (Fixed Security).

5.3 List of Assets

The Chargor shall, if requested by the Security Agent from time to time (but not more frequent than annually) or if requested by the Security Agent after the occurrence of an Acceleration Event which is continuing, as soon as reasonably practicable, deliver to the Security Agent (or procure the delivery of) a list of all Shares to the extent required by law to perfect or register any Security granted under or in relation to this Security Agreement **provided that** the Chargor shall only be required to provide such information where such information can be provided without breaching confidentiality requirements or damaging the Chargor's business relationships or commercial reputation.

5.4 Deposit of share certificates

- (a) The Chargor shall:
 - (i) as soon as reasonably practicable after the date of this Security Agreement, deposit with the Security Agent (or procure the deposit of) upon its request all certificates or other documents of title to the Shares, and stock transfer forms (executed in blank by it or on its behalf) in respect of the Shares; and
 - (ii) as soon as reasonably practicable upon the accrual, offer or issue of any stocks, shares, warrants or other securities in respect of or derived from the Shares (or upon acquiring any interest therein), deposit with the Security Agent (or procure the deposit of) (i) all certificates or other documents of title representing such assets and (ii) such stock transfer forms or other instruments of transfer (executed in blank by it or on its behalf) in respect thereof as the Security Agent may request (acting reasonably).
- (b) Any obligation under paragraph (a) above to deliver stock and share certificates and other documents of title relating to the Shares as soon as reasonably practicable will take into account the fact that certain other related documents may have to be stamped following completion of an acquisition and "as soon as reasonably practicable" shall mean as soon as reasonably practicable after such related documents are returned to the Chargor.
- (c) Until the documents referred to in paragraph (a) above are delivered to the Security Agent, such documents shall be held on trust by the Chargor for the Security Agent.

5.5 Further advances

Subject to the terms of the Debt Documents, the Secured Parties may be under an obligation to make further advances to the Debtors and that obligation will be deemed to be incorporated in this Security Agreement as if set out in this Security Agreement.

5.6 Property Restricting Charging

(a) There shall be excluded from the security created by Clause 4 (Fixed Security), Clause 5.4 (Deposit of share certificates) and Clause 6 (Further Assurance):

(i) any assets of the Chargor if the granting of Security on or over such asset would, in the reasonable opinion of the Chargor:

- (A) not be within the legal capacity of the Chargor;
- (B) be impossible or impractical to create Security over;
- (C) conflict with the fiduciary or statutory duties of the **Chargor or the Chargor's Affiliates'** directors or other officer or employee; or
- (D) contravene any legal or regulatory prohibition, bona fide contractual restriction or regulatory condition or result in a risk of personal, criminal or other legal liability on the part of any director (or officer or employee) of any member of the Group,

provided that the Chargor shall use reasonable endeavours (but without requiring the payment of money and without adverse impact on commercial relationships with third parties) to overcome any of the obstacles described in paragraphs (A) to (D) above to enable it to create Security on or over such asset;

(ii) any asset of the Chargor, which is subject to contracts, leases, licences or other arrangements with a third party, if the granting of Security on or over such asset would:

- (A) give a third party the right to terminate or otherwise amend any rights, benefits and/or obligations with respect of those assets or require any member of the Group to take any action materially adverse to the interests of the Group or any member thereof; or
- (B) either absolutely or conditionally be prohibited,

provided that for assets that are material in the context of the Group, and if, in the view of the Parent (acting reasonably), taking Security on or over such asset will have no adverse impact on commercial relationships with third parties or otherwise require the Group to pay money to third parties, the Chargor shall use commercially reasonable endeavours to overcome any of the obstacles described in paragraphs (A) to (B) above to enable it to create Security on or over such asset;

- (iii) any shares in joint ventures or any asset owned by such joint venture vehicles;
- (iv) any hedging agreements entered into by members of the Group;
- (v) any asset (A) subject to Security in favour of a third party or (B) which constitutes regulatory capital or customer cash, in each case to the extent permitted by the Debt Documents;
- (vi) directly or indirectly (A) any assets of a CFC, FSHCO or a subsidiary of a CFC or a FSHCO (including any CFC or FSHCO equity interests held directly or indirectly by a CFC or

FSHCO); and (B) any pledge or other security interest in excess of 65% of the voting equity interests of a CFC or FSHCO; and

(vii) any asset of the Chargor if the granting or creation of Security on or over such asset would restrict the ability of the Chargor to conduct its day-to-day operations and business in the ordinary course as otherwise permitted or not prohibited by the Debt Documents (including by way of imposing any restriction or practical limitation on the ability of the Group to deal with secured assets or enter into (or amend, waive, terminate or allow to lapse any rights, benefits or obligations) leasing, vendor financing, maintenance, insurance or similar or equivalent arrangements otherwise permitted by the terms of the Debt Documents) and any requirement under this Security Agreement to seek consent of any person or take or not take any other action shall be subject to this paragraph (vii).

(b) Immediately upon receipt of the relevant waiver or consent, the formerly excluded or restricted assets shall stand charged to the Security Agent under Clause 4 (Fixed Security).

(c) If at any time the Chargor notifies the Security Agent that an asset being subject to the Security created by this Security Agreement is excluded by the preceding paragraphs in this Clause 5.6, then to the extent applicable in accordance with the terms of, and as permitted by, the Agreed Security Principles, the Security Agent shall promptly enter into such documentation as is required by that Chargor in order to release that asset from the Security created by the other provisions of this Security Agreement. The Security Agent is entitled to rely absolutely and without any further investigation on any such notification from the Chargor and to enter into any such documentation.

5.7 Effect of creating security

For the avoidance of doubt, the creation of Security over the Charged Assets pursuant to this Security Agreement shall not impact the Chargor's ability to deal with the Charged Assets in accordance with the terms of each of the Debt Documents.

5.8 Non-perfection

Without limiting Clause 6 (Further Assurance), save for Clause 5.4 (Deposit of share certificates), nothing in this Security Agreement shall require the Chargor, prior to the occurrence of an Acceleration Event, to take any steps to perfect and/or protect any Security created or intended to be created in respect of the Charged Assets.

6. FURTHER ASSURANCE

(a) Subject to the Agreed Security Principles, the Chargor shall promptly do all such acts or execute all such documents (including assignments, transfers, mortgages, charges, notices and instructions) as the Security Agent may reasonably specify (and in such form as the Security Agent may reasonably require in favour of the Security Agent or its nominee(s)):

(i) to perfect the Security created or intended to be created under or evidenced by this Security Agreement (which may include the execution of a mortgage, charge, assignment or other Security over all or any of the assets which are, or are intended to be, the subject of this Security Agreement) or for the exercise of any rights, powers and remedies of the Security Agent or the Secured Parties provided by or pursuant to any Debt Document or by law;

(ii) to confer on the Security Agent or confer on the Secured Parties Security over any property and assets of that Chargor located in any jurisdiction equivalent or similar to the Security intended to be conferred by or pursuant to this Security Agreement; and/or

- (iii) to (after the Security created by this Security Agreement has become enforceable) facilitate the realisation of the assets which are, or are intended to be, the subject of this Security Agreement.
- (b) Subject to the Agreed Security Principles, the Chargor shall take all such action as is available to it (including making all filings and registrations) as may be necessary for the purpose of the creation, perfection, protection or maintenance of any Security conferred or intended to be conferred on the Security Agent or the Secured Parties by or pursuant to this Security Agreement.

7. SHARES

7.1 Shares: Representations and Undertaking

- (a) The Chargor represents and warrants that as of the date of this Security Agreement, the Shares held by it in the Company:
 - (i) represent the entire issued share capital of the Company; and
 - (ii) are fully paid and not subject to any option to purchase or similar rights (other than those existing under applicable law and except as set out in the Transaction Security Documents or relevant constitutional documents).
- (b) As at the date hereof, no "warning notice" or "restrictions notice" (in each case as defined in paragraph 1(2) of Schedule 1B of Part 21A of the Companies Act 2006) has been issued to the Chargor in respect of all or any part of the Shares and remains in effect.
- (c) The Chargor shall:
 - (i) comply with any notice served on it by a UK company with a PSC register whose shares are being charged pursuant to Part 21A of the Companies Act 2006 and within the timeframe specified in the notice; and
 - (ii) promptly provide the Security Agent with a copy of any such notice,

in each case, after it receives such notice.

7.2 Dividends prior to an Acceleration Event

Prior to the occurrence of an Acceleration Event, the Chargor shall be entitled to receive all dividends, interest and other monies arising from the Shares.

7.3 Dividends after an Acceleration Event

Upon the occurrence of an Acceleration Event and for so long as it is continuing, the Security Agent may, at its discretion, in the name of the Chargor or otherwise and without any further consent or authority from the Chargor, apply all dividends, interest and other monies arising from the Shares as though they were the proceeds of sale in accordance with Clause 12 (Application of Proceeds).

7.4 Voting rights prior to Security Agent Notice

Prior to the giving of notice pursuant to Clause 7.5 (Voting rights after Security Agent Notice), the Chargor shall be entitled to exercise all voting rights in relation to the Shares in a manner which (other than pursuant to a step or matter which does not otherwise breach the terms of any Debt Document)

does not adversely affect the validity or enforceability of the Security over the Shares or cause an Event of Default to occur.

7.5 Voting rights after Security Agent Notice

- (a) Subject to Clause 7.6 (Waiver of voting rights by Security Agent), upon the occurrence of an Acceleration Event and for so long as it is continuing, the Security Agent may (but without having any obligation to do so) give notice to the Chargor (with a copy to the Agent) that this Clause 7.5 will apply. With effect from the giving of that notice, the Security Agent may, at its discretion, in the name of the Chargor or otherwise and without any further consent or authority from the Chargor:
 - (i) exercise (or refrain from exercising) any voting or other rights and powers in respect of the Shares; and
 - (ii) exercise (or refrain from exercising) the powers and rights conferred on or exercisable by the legal or beneficial owner of the Shares including the right, in relation to any company whose shares or other securities are included in the Shares, to concur or participate in:
 - (A) the reconstruction, amalgamation, sale or other disposal of such company or any of its assets or undertaking (including the exchange, conversion or reissue of any shares or securities as a consequence thereof);
 - (B) the release, modification or variation of any rights or liabilities attaching to such shares or securities; and
 - (C) the exercise, renunciation or assignment of any right to subscribe for any shares or securities,

in each case, in the manner and on the terms the Security Agent thinks fit, and the proceeds of any such action shall form part of the Shares.

- (b) Notwithstanding paragraph (a) above, Clause 19.8 (Rights and discretions) of the Intercreditor Agreement shall apply to all voting rights in relation to the Shares after a notice has been given by the Security Agent under this Clause 7.5.

7.6 Waiver of voting rights by Security Agent

- (a) The Security Agent may, in its absolute discretion and without any consent or authority from the other Secured Parties or the Chargor, at any time, by notice to the Chargor (which notice shall be irrevocable), with a copy to the Agent, elect to give up the right to exercise (or refrain from exercising) all voting rights and powers in respect of the Shares conferred or to be conferred on the Security Agent pursuant to Clause 7.5 (Voting rights after Security Agent Notice) and the other Secured Parties unconditionally waive any rights they may otherwise have to require the Security Agent not to make such election or to require the Security Agent to indemnify, compensate or otherwise make good for any losses, costs or liabilities incurred by any of them in relation to or as a consequence of the Security Agent making such election.
- (b) Once a notice has been issued by the Security Agent under paragraph (a) of this Clause 7.6, on and from the date of such notice the Security Agent shall cease to have the rights to exercise or refrain from exercising voting rights and powers in respect of the Shares conferred or to be conferred on it pursuant to Clause 7.5 (Voting rights after Security Agent Notice) or any other provision of this Security Agreement and all such rights will be exercisable by the Chargor. The Chargor shall be entitled, on and from the date of such notice, to exercise all voting rights and powers in relation to the Shares.

8. ENFORCEMENT OF SECURITY

8.1 Enforcement

Any time after the occurrence of:

- (a) an Acceleration Event which is continuing; or
- (b) a request from the Chargor to the Security Agent that it exercise any of its powers of enforcement under this Security Agreement,

the Security created by or pursuant to this Security Agreement is immediately enforceable and the Security Agent may, without notice to the Chargor or prior authorisation from any court, in its absolute discretion:

- (i) secure and perfect its title to all or any part of the Charged Assets;
- (ii) enforce all or any part of that Security (at the times, in the manner and on the terms, it thinks fit and take possession of and hold or dispose of all or any part of the Charged Assets, in each case, in accordance with the terms of the Intercreditor Agreement); and
- (iii) whether or not it has appointed a Receiver, exercise all or any of the rights, powers, authorities and discretions conferred by the Law of Property Act 1925 (as varied or extended by this Security Agreement) on mortgagees and by this Security Agreement on any Receiver or otherwise conferred by law on mortgagees or Receivers.

8.2 Effect of moratorium

The Security Agent shall not be entitled to exercise its rights under Clause 8.1 (Enforcement) where the right arises as a result of an Event of Default occurring solely due to any person obtaining, or taking steps to obtain, a moratorium pursuant to Part A1 of the Insolvency Act 1986 other than in respect of any floating charge referred to in subsection (4) of section A52 of Part A1 of the Insolvency Act 1986.

9. EXTENSION OF POWERS AND RIGHT OF APPROPRIATION

9.1 Extension of powers

The power of sale or other disposal conferred on the Security Agent and on any Receiver by this Security Agreement shall operate as a variation and extension of the statutory power of sale under section 101 of the Law of Property Act 1925 and such power shall arise (and the Secured Obligations shall be deemed due and payable for that purpose) on the date of this Security Agreement.

9.2 Restrictions

The restrictions contained in sections 93 and 103 of the Law of Property Act 1925 shall not apply to this Security Agreement or to the exercise by the Security Agent of its right to consolidate all or any of the Security created by or pursuant to this Security Agreement with any other Security in existence at any time or to its power of sale, which powers may be exercised by the Security Agent without notice to the Chargor on or at any time after the Security created by or pursuant to this Security Agreement has become enforceable in accordance with Clause 8 (Enforcement of Security).

9.3 Power of leasing

- (a) The statutory powers of leasing may be exercised by the Security Agent at any time on or after this Security Agreement has become enforceable in accordance with Clause 8 (Enforcement of Security) and the Security Agent and any Receiver may make any lease or agreement for lease, accept surrenders of leases and grant options on such terms as it shall think fit, without the need to comply with sections 99 and 100 of the Law of Property Act 1925.
- (b) For the purposes of sections 99 and 100 of the Law of Property Act 1925, the expression "Mortgagor" will include any incumbrancer deriving title under any Chargor and neither section 99(18) nor section 100(12) of the Law of Property Act 1925 will apply.
- (c) Section 99 of the Law of Property Act 1925 shall not apply so as to confer on the Chargor any additional right to make leases over and above as is permitted pursuant to the remaining terms of this Security Agreement and the terms of each other Debt Documents.

9.4 Right of appropriation

After the Security created by or pursuant to this Security Agreement has become enforceable in accordance with Clause 8.1 (Enforcement) to the extent that the provisions of the Financial Collateral Arrangements (No. 2) Regulations 2003, as amended, (the Regulations) apply to a Charged Asset, the Security Agent shall have the right to appropriate all or any part of that Charged Asset in or towards the payment or discharge of the Secured Obligations and may exercise such right to appropriate upon giving written notice to the Chargor. For this purpose, the parties agree that the value of that Charged Asset shall be the market value of such Shares determined by the Security Agent by reference to a public index or independent valuation, or by such other process as the Security Agent may select, subject to the terms of the Intercreditor Agreement.

The parties further agree that the method of valuation provided for in this Security Agreement shall constitute a commercially reasonable method of valuation for the purposes of the Regulations.

9.5 Statutory powers

The powers conferred by this Security Agreement on the Security Agent are in addition to and not in substitution for the powers conferred on mortgagees and mortgagees in possession under the Law of Property Act 1925, the Insolvency Act 1986 or otherwise by law (in each case to the extent applicable to the Security created by this Security Agreement) and such powers shall remain exercisable from time to time by the Security Agent in respect of any part of the Charged Assets. In the case of any conflict between the statutory powers contained in any such Acts and those conferred by this Security Agreement, the terms of this Security Agreement shall prevail.

10. APPOINTMENT OF RECEIVER OR ADMINISTRATOR

10.1 Appointment and removal

After the Security created by or pursuant to this Security Agreement has become enforceable in accordance with Clause 8.1 (Enforcement), the Security Agent may by deed or otherwise (acting through an authorised officer of the Security Agent):

- (a) without prior notice to the Chargor:
 - (i) appoint one or more persons to be a Receiver of the whole or any part of the Charged Assets; or
 - (ii) appoint two or more Receivers of separate parts of the Charged Assets; or

- (iii) remove (so far as it is lawfully able) any Receiver so appointed; or
 - (iv) appoint another person(s) as an additional or replacement Receiver(s); or
 - (v) appoint one or more persons to be an administrator of the Chargor pursuant to paragraph 14 of Schedule B1 of the Insolvency Act 1986; and
- (b) appoint one or more persons to be an administrator of that Chargor pursuant to paragraph 12 of Schedule B1 of the Insolvency Act 1986.

No Secured Party will incur any liability (either to the Chargor or to any other person) by reason of the appointment of a Receiver or for any acts, defaults or liabilities of the Receiver.

10.2 Capacity of Receivers

Each person appointed to be a Receiver pursuant to Clause 10.1 (Appointment and removal) shall be:

- (a) entitled to act individually or together with any other person appointed or substituted as Receiver;
- (b) for all purposes deemed to be the agent of the Chargor which shall be solely responsible for his acts, defaults and liabilities and for the payment of his remuneration and no Receiver shall at any time act as agent for the Security Agent; and
- (c) entitled to remuneration for his services at a rate to be fixed by the Security Agent from time to time (without being limited to the maximum rate specified by the Law of Property Act 1925).

10.3 Statutory powers of appointment

The powers of appointment of a Receiver shall be in addition to all statutory and other powers of appointment of the Security Agent under the Law of Property Act 1925 (as extended by this Security Agreement) or otherwise and such powers shall remain exercisable from time to time by the Security Agent in respect of any part of the Charged Assets.

11. POWERS OF RECEIVERS

Every Receiver shall (subject to any restrictions in the instrument appointing him but notwithstanding any winding-up or dissolution of the Chargor) have and be entitled to exercise, in relation to the Charged Assets (and any assets of the Chargor which, when got in, would be Charged Assets) in respect of which he was appointed, and as varied and extended by the provisions of this Security Agreement (in the name of or on behalf of the Chargor or in his own name and, in each case, at the cost of the Chargor):

- (a) all the powers conferred by the Law of Property Act 1925 on mortgagors and on mortgagees in possession and on receivers appointed under that Act;
- (b) all the powers of an administrative receiver set out in Schedule 1 to the Insolvency Act 1986 (whether or not the Receiver is an administrative receiver);
- (c) all the powers and rights of an absolute owner and power to do or omit to do anything which the Chargor itself could do or omit to do; and

- (d) the power to do all things (including bringing or defending proceedings in the name or on behalf of the Chargor) which seem to the Receiver to be incidental or conducive to:
 - (i) any of the functions, powers, authorities or discretions conferred on or vested in him;
 - (ii) the exercise of the Collateral Rights (including realisation of all or any part of the assets in respect of which that Receiver was appointed); or
 - (iii) bringing to his hands any assets of the Chargor forming part of, or which when got in would be, Charged Assets.

12. APPLICATION OF PROCEEDS

All monies received or recovered and any non-cash recoveries made or received by the Security Agent or any Receiver pursuant to this Security Agreement or the powers conferred by it shall (subject to the claims of any person having prior rights thereto and by way of variation of the provisions of the Law of Property Act 1925) be applied by the Security Agent in accordance with the terms of the Intercreditor Agreement.

13. PROTECTION OF PURCHASERS

13.1 Consideration

The receipt of the Security Agent or any Receiver shall be a conclusive discharge to a purchaser and, in making any sale or disposal of any of the Charged Assets or making any acquisition, the Security Agent or any Receiver may do so for such consideration (whether cash or non-cash), in such manner and on such terms as it thinks fit, in accordance with the terms of the Intercreditor Agreement.

13.2 Protection of purchasers

No purchaser or other person dealing with the Security Agent or any Receiver shall be bound to inquire whether the right of the Security Agent or such Receiver to exercise any of its powers has arisen or become exercisable or be concerned with any propriety or regularity on the part of the Security Agent or such Receiver in such dealings.

14. POWER OF ATTORNEY

14.1 Appointment and powers

Subject to Clause 14.2 (Use of powers) below, the Chargor by way of security irrevocably appoints the Security Agent and any Receiver severally to be its attorney and in its name, on its behalf and as its act and deed to execute, deliver and perfect all other documents and do all things which the attorney may reasonably consider to be required for:

- (a) carrying out any obligation imposed on the Chargor by this Security Agreement (including the execution and delivery of any deeds, charges, assignments or other security and any transfers of the Charged Assets and perfecting and/or releasing the Security created or intended to be created in respect of the Charged Assets); and
- (b) enabling the Security Agent and any Receiver to exercise, or delegate the exercise of, any of the rights, powers and authorities conferred on them by or pursuant to this Security Agreement or by law (including, on or after the date upon which this Security Agreement has become enforceable in accordance with Clause 11 (Enforcement of Security), the exercise of any right of a legal or beneficial owner of the Charged Assets).

14.2 Use of powers

The Security Agent and any Receiver shall only be able to exercise a power of attorney under this Security Agreement upon:

- (a) the occurrence of an Acceleration Event which is continuing; or
- (b) if the Chargor has failed to comply with the terms of Clause 5 (Provisions as to Security and Perfection) and Clause 6 (Further Assurance) within ten (10) Business Days of being notified of such failure (with a copy of such notice being served on the Parent) and being requested to comply.

14.3 Ratification

The Chargor shall ratify and confirm all things done and all documents executed by any attorney in the proper exercise of all or any of his powers.

15. EFFECTIVENESS OF SECURITY

15.1 Continuing security

- (a) The Security created by or pursuant to this Security Agreement shall remain in full force and effect as a continuing security for the Secured Obligations unless and until discharged by the Security Agent in writing.
- (b) No part of the Security from time to time intended to be created by this Security Agreement will be considered satisfied or discharged by an intermediate payment, discharge or satisfaction of the whole or any part of the Secured Obligations.

15.2 Cumulative rights

The Security created by or pursuant to this Security Agreement, and the Collateral Rights, shall be cumulative, in addition to and independent of every other Security which the Security Agent or any other Secured Party may at any time hold for the Secured Obligations or any other obligations or any rights, powers and remedies provided by law and shall operate as an independent Security notwithstanding any receipt, release or discharge endorsed on or given in respect of or under any such other Security. No prior Security held by the Security Agent (whether in its capacity as trustee or otherwise) or any of the other Secured Parties over the whole or any part of the Charged Assets shall merge into the Security created by this Security Agreement.

15.3 No prejudice

The Security created by or pursuant to this Security Agreement, and the Collateral Rights, shall not be prejudiced by any unenforceability or invalidity of any other agreement or document or by any time or indulgence granted to the Chargor or any other person, or the Security Agent (whether in its capacity as trustee or otherwise) or any of the other Secured Parties or by any variation of the terms of the trust upon which the Security Agent holds the Security or by any other thing which might otherwise prejudice that Security or any Collateral Right.

15.4 Remedies and waivers

No failure on the part of the Security Agent to exercise, nor any delay on its part in exercising, any Collateral Right, shall operate as a waiver of that Collateral Right or constitute an election to affirm this Security Agreement. No election to affirm this Security Agreement on the part of the Security

Agent shall be effective unless it is in writing. No single or partial exercise of any Collateral Right shall preclude any further or other exercise of that or any other Collateral Right.

15.5 No liability

None of the Security Agent, its nominee(s) or any Receiver shall be liable:

- (a) to account as a mortgagee or mortgagee in possession; or
- (b) for any loss arising by reason of taking any action permitted by this Security Agreement or any neglect or default in connection with the Charged Assets or taking possession of or realising all or any part of the Charged Assets,

except in the case of gross negligence or wilful default upon its part.

15.6 Partial invalidity

If, at any time, any provision of this Security Agreement is or becomes illegal, invalid or unenforceable in any respect under the law of any jurisdiction, neither the legality, validity or enforceability of the remaining provisions of this Security Agreement nor of such provision under the laws of any other jurisdiction shall in any way be affected or impaired thereby and, if any part of the Security intended to be created by or pursuant to this Security Agreement is invalid, unenforceable or ineffective for any reason, that shall not affect or impair any other part of the Security.

15.7 Waiver of defences

The obligations assumed, and the Security created, by the Chargor under this Security Agreement, and the Collateral Rights, will not be affected by any act, omission, matter or thing which, but for this Clause 15.7, would reduce, release or prejudice any of its obligations under, or the Security created by, this Security Agreement (without limitation and whether or not known to the Chargor or any Secured Party) including:

- (a) any time, waiver or consent granted to, or composition with, any Obligor or other person;
- (b) the release of any other Obligor or any other person under the terms of any composition or arrangement with any creditor of any member of the Group;
- (c) the taking, variation, compromise, exchange, renewal or release of, or refusal or neglect to perfect, take up or enforce, any rights against, or Security over assets of, any Obligor or other person or any non-presentation or non-observance of any formality or other requirement in respect of any instrument or any failure to realise the full value of any Security;
- (d) any incapacity or lack of power, authority or legal personality of or dissolution or change in the members or status of, any Obligor or any other person;
- (e) any amendment, novation, supplement, extension (whether of maturity or otherwise) or restatement (in each case, however fundamental and of whatever nature, and whether or not more onerous) or replacement of a Debt Document or any other document or Security or of the Secured Obligations including any change in the purpose of, any extension of or increase in any facility or the addition of any new facility under any Debt Document or other document or Security;
- (f) any unenforceability, illegality or invalidity of any obligation of any person under any Debt Document or any other document or Security or of the Secured Obligations; and

- (g) any insolvency or similar proceedings.

15.8 **Chargor intent**

Without prejudice to the generality of Clause 15.7 (Waiver of defences), the Chargor expressly confirms that it intends that the Security created under this Security Agreement, and the Collateral Rights, shall extend from time to time to any (however fundamental and of whatsoever nature, and whether or not more onerous) variation, increase, extension or addition of or to any of the Debt Documents and/or any facility or amount made available under any of the Debt Documents for the purposes of or in connection with any of the following: acquisitions of any nature; increasing working capital; enabling investor distributions to be made; carrying out restructurings; refinancing existing facilities; refinancing any other indebtedness; making facilities available to new borrowers; any other variation or extension of the purposes for which any such facility or amount might be made available from time to time; and any fees, costs and/or expenses associated with any of the foregoing.

15.9 **Immediate recourse**

The Chargor waives any right it may have of first requiring any Secured Party (or any trustee or agent on its behalf) to proceed against or enforce any other rights or Security or claim payment from any other person before claiming from the Chargor under this Security Agreement or enforcing the Security created by this Security Agreement. This waiver applies irrespective of any law or any provision of this Security Agreement to the contrary.

15.10 **Deferral of rights**

Until the end of the Security Period, the Chargor will not exercise any rights which it may have by reason of performance by it of its obligations under this Security Agreement:

- (a) to be indemnified by an Obligor or in respect of any other person;
- (b) to claim any contribution from any guarantor or any other person in respect of an **Obligor's** obligations under the Debt Documents;
- (c) to take the benefit (in whole or in part and whether by way of subrogation or otherwise) of any rights of any Secured Party under the Debt Documents or of any other guarantee or Security taken pursuant to, or in connection with, the Debt Documents by any Secured Party;
- (d) to bring legal or other proceedings for an order requiring any Obligor or other person to make any payment, or perform any obligation, in respect of which any Obligor or any other person has given a guarantee, undertaking or indemnity under any Debt Document;
- (e) to exercise any right of set-off against any Obligor or other person; and/or
- (f) to claim or prove as a creditor of any Debtor or other person in competition with any Secured Party.

If the Chargor receives any benefit, payment or distribution in relation to such rights it shall hold that benefit, payment or distribution on trust for the Secured Parties to the extent necessary to enable all amounts which may be or become payable to any Secured Party by the Debtors under or in connection with the Debt Documents to be repaid in full and shall promptly pay or transfer the same to the Security Agent or as the Security Agent may direct for application in accordance with Clause 12 (Application of Proceeds).

15.11 Additional Security

The Security created by the Chargor under this Security Agreement and the Collateral Rights are in addition to and are not in any way prejudiced by any other guarantee or Security now or subsequently held by any Secured Party.

16. PRIOR SECURITY INTERESTS

- (a) In the event of any action, proceeding or step being taken to exercise any powers or remedies conferred by any prior ranking Security against any of the Charged Assets or in case of exercise by the Security Agent or any Receiver of any power of sale under this Security Agreement, the Security Agent may redeem such prior Security or procure the transfer thereof to itself.
- (b) If otherwise entitled to do so under this Security Agreement, the Security Agent may settle and agree the accounts of the prior Security and any accounts so settled and agreed will be conclusive and binding on the Chargor.

Subject to the Agreed Security Principles, all principal monies, interest, costs, charges and expenses of and incidental to any redemption or transfer will be paid by the Chargor to the Security Agent on demand together with accrued interest thereon calculated in accordance with clause 22.4 (Interest on Demand) of the Intercreditor Agreement.

17. SUBSEQUENT SECURITY INTERESTS

If the Security Agent (acting in its capacity as trustee or otherwise) or any of the other Secured Parties at any time receives or is deemed to have received notice of any subsequent Security, assignment or transfer affecting all or any part of the Charged Assets which is prohibited by the terms of any Debt Document, all payments thereafter made by or on behalf of the Chargor to the Security Agent (whether in its capacity as trustee or otherwise) or any of the other Secured Parties will (in the absence of any express contrary appropriation by the Chargor) be treated as having been credited to a new account of the Chargor and not as having been applied in reduction of the Secured Obligations at the time that notice was received.

18. SUSPENSE ACCOUNTS

- (a) All monies received, recovered or realised by the Security Agent under this Security Agreement (including the proceeds of any conversion of currency) may in the discretion of the Security Agent be credited to any interest bearing suspense or impersonal account(s) maintained with any bank, building society, financial institution or other person which the Security Agent considers appropriate (including itself) for so long as it may think fit (the interest being credited to the relevant account) pending their application from time to time at the Security Agent's discretion, in or towards the discharge of any of the Secured Obligations, **provided that** as soon as the Security Agent has received the full amount of all monies owed to them under this Security Agreement, all funds standing to the credit of such suspense or impersonal account(s) must be immediately applied towards the discharge of the Secured Obligations.
- (b) Save as provided herein, no party will be entitled to withdraw any amount at any time standing to the credit of any suspense or impersonal account referred to above.

19. RELEASE OF SECURITY

Without prejudice to the provisions of any other Debt Document requiring the Security Agent to release all or part of the Security created by this Security Agreement (including Clause 1.8 (Permitted

Transactions and Permitted Security))), upon the expiry of the Security Period, the Security Agent shall, at the request and cost of the Chargor, release and cancel the Security created by this Security Agreement and procure the reassignment to the Chargor of the property and assets assigned to the Security Agent pursuant to this Security Agreement, in each case subject to Clause 19.1 (Clawback) and without recourse to, or any representation or warranty by, the Security Agent or any of its nominees.

19.1 Clawback

In accordance with provisions of the Intercreditor Agreement, if the Security Agent considers that there is a reasonable likelihood any amount paid or credited to any Secured Party is capable of being avoided or reduced by virtue of any bankruptcy, insolvency, liquidation or similar laws, the liability of the Chargor under this Security Agreement and the Security created by that or those documents will continue and such amount will not be considered to have been irrevocably paid or credited.

20. ASSIGNMENT & CHANGES TO THE PARTIES

20.1 No assignments or transfers by Chargor

Save as otherwise permitted by the Debt Documents, Chargor may not assign any of its rights or transfer any of its rights or obligations under this Security Agreement.

20.2 Assignments and transfers by the Security Agent

The Security Agent may assign and transfer all or any of its rights and obligations under this Security Agreement in accordance with the terms of the Intercreditor Agreement. The Security Agent shall be entitled to disclose such information concerning the Chargor and this Security Agreement as the Security Agent considers appropriate to any actual or proposed direct or indirect successor or to any person to whom information may be required to be disclosed by any applicable law.

20.3 Successors

This Security Agreement shall remain in effect despite any amalgamation or merger (however effected) relating to the Security Agent. References to the Security Agent shall include (a) any transferee, assignee or successor in title of the Security Agent, (b) any entity into which the Security Agent is merged or converted or with which it may be consolidated, (c) any legal entity resulting from any merger, conversion or consolidation to which such Security Agent is a party and (d) any other person who, under the laws of its jurisdiction of incorporation or domicile, has assumed the rights and obligations of the Security Agent under this Security Agreement or to which, under such laws, those rights and obligations have been transferred (such person described in (a) to (d) being a successor to the Security Agent for all purposes under the Debt Documents).

21. NOTICES

Each communication to be made by or to a Chargor or by or to the Security Agent under or in connection with this Debenture shall be made in accordance with the Intercreditor Agreement (to the extent applicable).

22. DISCRETION AND DELEGATION

22.1 Discretion

Any liberty or power which may be exercised or any determination which may be made under this Security Agreement by the Security Agent or any Receiver may, subject to the terms and conditions of the Intercreditor Agreement, be exercised or made in its absolute and unfettered discretion without

any obligation to give reasons, provided that this Clause 22.1 shall be without prejudice to clause 19.8 (Rights and discretions) and 19.11 (Exclusion of liability) of the Intercreditor Agreement.

22.2 Delegation

Each of the Security Agent and any Receiver shall have full power to delegate (either generally or specifically) the powers, authorities and discretions conferred on it by this Security Agreement (including the power of attorney) on such terms and conditions as it shall see fit which delegation shall not preclude the subsequent exercise, any subsequent delegation or any revocation of such power, authority or discretion by the Security Agent or the Receiver itself.

23. CONTRACTUAL RECOGNITION OF BAIL-IN

Notwithstanding any other term of any Finance Document or any other agreement, arrangement or understanding between the Parties, each Party acknowledges and accepts that any liability of any Party to any other Party under or in connection with the Finance Documents may be subject to Bail-In Action by the relevant Resolution Authority and acknowledges and accepts to be bound by the effect of:

- (a) any Bail-In Action in relation to any such liability, including (without limitation):
 - (i) a reduction, in full or in part, in the principal amount, or outstanding amount due (including any accrued but unpaid interest) in respect of any such liability;
 - (ii) a conversion of all, or part of, any such liability into shares or other instruments of ownership that may be issued to, or conferred on, it; and
 - (iii) a cancellation of any such liability; and
- (b) a variation of any term of any Finance Document to the extent necessary to give effect to any Bail-In Action in relation to any such liability.

For the purposes of this Clause 23 (Contractual recognition of bail-in)

Article 55 BRRD means Article 55 of Directive 2014/59/EU establishing a framework for the recovery and resolution of credit institutions and investment firms.

Bail-In Action means the exercise of any Write-down and Conversion Powers.

Bail-In Legislation means:

- (a) in relation to an EEA Member Country which has implemented, or which at any time implements, Article 55 BRRD, the relevant implementing law or regulation as described in the EU Bail-In Legislation Schedule from time to time; and
- (b) in relation to the United Kingdom, the UK Bail-In Legislation.

EEA Member Country means any member state of the European Union, Iceland, Liechtenstein and Norway.

EU Bail-In Legislation Schedule means the document described as such and published by the Loan Market Association (or any successor person) from time to time.

Resolution Authority means any body which has authority to exercise any Write-down and Conversion Powers.

UK Bail-In Legislation means Part I of the United Kingdom Banking Act 2009 and any other law or regulation applicable in the United Kingdom relating to the resolution of unsound or failing banks, investment firms or other financial institutions or their affiliates (otherwise than through liquidation, administration or other insolvency proceedings).

Write-down and Conversion Powers means:

- (a) in relation to any Bail-In Legislation described in the EU Bail-In Legislation Schedule from time to time, the powers described as such in relation to that Bail-In Legislation in the EU Bail-In Legislation Schedule; and
- (b) in relation to the UK Bail-In Legislation, any powers under that UK Bail-In Legislation to cancel, transfer or dilute shares issued by a person that is a bank or investment firm or other financial institution or affiliate of a bank, investment firm or other financial institution, to cancel, reduce, modify or change the form of a liability of such a person or any contract or instrument under which that liability arises, to convert all or part of that liability into shares, securities or obligations of that person or any other person, to provide that any such contract or instrument is to have effect as if a right had been exercised under it or to suspend any obligation in respect of that liability or any of the powers under that UK Bail-In Legislation that are related to or ancillary to any of those powers.

24. ACKNOWLEDGEMENT REGARDING ANY SUPPORTED QFCS

The provisions of clause 1.15 (Acknowledgement regarding any Supported QFCs) of the Senior Facilities Agreement apply to this Security Agreement as though they were set out in full in this Security Agreement except that references to any Finance Document are to be construed as references to this Security Agreement and references to the parties to the Senior Facilities Agreement are to be construed as references to the parties hereto.

25. COUNTERPARTS

This Security Agreement may be executed in any number of counterparts, and this has the same effect as if the signatures on the counterparts were on a single copy of this Security Agreement.

26. GOVERNING LAW

This Security Agreement (including any non-contractual obligations arising out of or in relation to this Security Agreement) and any dispute or proceeding arising out of or relating to this Security Agreement shall be governed by English law.

27. JURISDICTION

27.1 Jurisdiction of English courts

- (a) The courts of England have exclusive jurisdiction to settle any dispute arising out of or in connection with this Security Agreement (including a dispute relating to the existence, validity or termination of this Security Agreement or the consequences of its nullity) or any non-contractual obligations arising out of or in connection with this Security Agreement (a **Dispute**).
- (b) The Chargor agrees that the courts of England are the most appropriate and convenient courts to settle Disputes and accordingly no Party will argue to the contrary.

THIS SECURITY AGREEMENT has been executed as, and is intended to take effect as, a deed by the Chargor and has been signed by the Security Agent on the date written on the first page of this Security Agreement.

SCHEDULE 1

SHARES

Name of Chargor which holds the Shares	Name of entity issuing Shares	Number and class of Shares
Alpha Financial Markets Consulting Group Limited	Alpha Financial Markets Consulting UK Limited	275000 Ordinary GBP1 Shares of £1.00 each

EXECUTION PAGES TO SECURITY AGREEMENT

The Chargor

EXECUTED AS A DEED

for and on behalf of:

ALPHA FINANCIAL MARKETS CONSULTING GROUP LIMITED

By:
..... Signature of Director
John Paton
..... Name of Director

By:
..... Signature of Director
Greg Cook
..... Name of Director

The Security Agent

GLAS TRUST CORPORATION LIMITED

as the Security Agent

By: 

Name: Emma Batchelor

Title: Authorised Signatory

Notice Details:

Registered Address: 55 Ludgate Hill, Level 1, West, London EC4M 7JW, United Kingdom

Telephone: +44 (0)20 35972940

Fax: +44 (0)20 3070 0113

Email: tmg@glas.agency

Attention: Transaction Management Group (Project Atlas)